

ONTARIO
SUPERIOR COURT OF JUSTICE

BARRY BENNETT

)
)
) Heather Bayley, for Her Majesty
)
)
)
)
)
)
)
)
) Michael Engel, for Barry Bennett
)
)
)
)
)
) **HEARD:** August 8, 9, and 10, 2005.

D.S. Ferguson J.:

[1] These are my reasons on the defence pre-trial applications seeking the exclusion of evidence.

FACTS

[2] I shall summarize the primary evidence before me.

[3] The facts stated in the Motor Vehicle Accident Report, Ex. 3, are admitted. It states that on December 7, 2003 the KIA vehicle stopped facing a stop sign. The accused's vehicle struck it from behind after leaving a 25 m. skid mark. The posted speed limit was 50 mph.

[4] The fire department personnel attended and blocked the intersection.

[5] Ms. Ahmed, the driver of the KIA, testified that she had stopped facing south at the stop sign with her turn signal on when she was struck from behind. She estimated that she had been stopped "a minute". She heard squealing tires before impact.

[6] The intersection was a 4 way stop and there were vehicles coming northbound stopped at the stop sign across the intersection.

[7] The back of her car was damaged. The rear bumper was hanging off. Her vehicle was pushed beyond the stop sign on the opposite side of the intersection.

[8] She got out of her car and walked back toward the accused's vehicle. As she approached he started to get out of his vehicle. She told a bystander to call 911. The accused said, "Don't call 911. Don't call 911.". He also said, "Let's just go up the street to the I.G.A. and we will talk about it". She could see he was bleeding from the forehead.

[9] She asked him to go and sit on the sidewalk because he was dripping blood. He got out. She walked away because he did not want any help.

[10] She estimates she spoke to him for 3 to 5 minutes. She did not smell any alcohol. She said he didn't seem coherent because he did not want her to call 911 even though he was bleeding. She said he seemed dazed and confused.

[11] She said she suffered soft tissue injuries.

[12] The weather was sunny and dry.

[13] Ms. Slot was a front seat passenger in the KIA.

[14] Her testimony was similar to that of Ms. Ahmed concerning the accident. She said her seat in the car was broken and laying flat.

[15] She did not speak to the accused and did not get close to him.

[16] She also suffered soft tissue injuries.

[17] Ms. Ahmed and Ms. Slot were taken away from the scene in an ambulance. Ms. Ahmed said she left before P.C. Chalmers arrived. Ms. Slot said she saw him arrive.

[18] Mr. Kean was a witness. He goes by the intersection daily.

[19] He had stopped at the stop sign facing northbound. His was the first car.

[20] He saw the accused's vehicle coming for a few seconds. It didn't look like it was going to stop. It was going too fast. He thought the accused's vehicle might try to go around the stopped vehicle.

[21] He saw considerable damage to the front of the accused's vehicle which was steaming.

[22] After the collision he approached the accused's vehicle and saw the accused in the driver's seat with blood on his forehead. He told the accused to sit down a minute and told Ms. Ahmed to call 911. The accused replied, "No, no, don't call 911". A couple of minutes later the accused got out. A woman bystander called 911 on her cell phone.

[23] The ambulance arrived about 10 minutes later and the police arrived about half an hour after the accident.

[24] He saw the accused walking and then sit down on the curb. When the accused first got out of the car he was "staggering or stumbling" and seemed stunned. "He wasn't doing that for half an hour or anything like that because he did sit down." He said once the accused got out of the car "and got his senses" he didn't notice anything unusual about his walking.

[25] He was standing right beside the accused when he got out of his vehicle. Mr. Kean did not say he smelled alcohol. He was not asked.

[26] Two fire trucks and an ambulance arrived. He pointed out the accused as the driver to P.C. Chambers.

[27] He recalls seeing both the ambulance and fire personnel talking to the accused.

[28] I note in passing that defence counsel asked lay witnesses about their opinions as to whether any of the accused's behaviour could be explained by his head injury. The accused also expressed opinions on this. I place no weight on the answers except to the extent they assist in understanding what the witnesses did observe. The witnesses have no expertise and therefore their opinions are not admissible.

[29] P.C. Chambers said he had an independent recollection of the events. He received a dispatch to the scene at 2:16 pm and arrived at 2:24 pm.

[30] On route he was advised that there were two vehicles in a collision, ambulance and fire were at the scene and that fire personnel said the male driver was bleeding from the head and they detected alcohol on him. The ambulance personnel said the accused had declined to go to the hospital.

[31] He was the first officer on the scene. He saw the two damaged vehicles, the skid marks, the accused standing beside his vehicle, and the ambulance and fire personnel.

[32] He spoke to Mr. Kean who identified the accused as the driver and gave an account of the collision similar to that above. He told Chambers that the accused's vehicle had tried to stop at the last minute and skidded into the other car. Chambers saw the skid marks but did not measure them.

[33] Chambers also spoke to a firefighter who said the accused was the driver and that he had detected an odour of alcohol on him. Chambers did not make a note of this.

[34] He was told the occupants of the KIA had already been taken to the hospital. He was not given any information about their condition.

[35] Chambers approached the accused who was standing beside his vehicle.

[36] Chambers did not identify himself as a police officer but he was in full uniform.

[37] The officer saw a bandage on the accused's forehead and blood on his clothes. He said the accused never commented on his injury and did not ask for medical attention.

[38] He saw the broken windshield on the accused's vehicle.

[39] Chambers testified that the accused appeared to understand what the officer said and that the accused's responses made sense.

[40] Chambers asked if he was OK. The accused said he was.

[41] Chambers noticed he had slightly slurred speech and smelled of alcohol. He cannot recall what words the accused spoke.

[42] Chambers asked for his driver's licence, ownership and insurance. The accused produced them when he was in the back seat of the cruiser.

[43] The officer noticed that the accused was unbalanced.

[44] In his notes he wrote, "I requested driver's licence, ownership and insurance. He also appeared to be unbalanced slightly."

[45] The officer asked the accused if he wished to sit in the back of the cruiser because it was a cold day. They went to the cruiser. Inside, Chambers noticed that the odour of alcohol became stronger.

[46] Chambers said that he then "formed my grounds that he was impaired", asked him to step out of the cruiser and informed him he was under arrest for impaired driving. He testified that he agreed that the odour was indicative only of consumption.

[47] He formed the opinion that his motor skills were delayed and his reaction time was delayed by alcohol.

[48] P.C. Dombroskie arrived and took over the accident investigation but had no contact with the accused.

[49] After informing him he was under arrest, Chambers read the accused his rights to counsel from his notebook and asked if he understood. He acknowledged that he did.

[50] All Chambers wrote in his book was “rtc” and “he understood and he declined”. He testified that there was no ambiguity in the accused’s response and that it was his practice to explain the rights if an accused did not appear to understand. He said he agreed that it was important to write down verbatim what the accused said but that there was a lot going on at the scene.

[51] Chambers then asked if he wished to call a lawyer “now” and the accused declined.

[52] Chambers then read the caution from his notebook and asked if he understood. He acknowledged that he did.

[53] Chambers cannot remember any of the accused’s specific words and did not note them in his notebook.

[54] Chambers then read the breath demand and asked if he understood. The accused said, “Yup”.

[55] Chambers was advised by the dispatcher to take the accused to 18 Division. That is a small station with no booking officer.

[56] When they arrived Chambers put the accused in holding room 2. He wrote out a description of the accused’s clothing.

[57] Chambers testified that at the station he again asked the accused if he would like to speak to a lawyer. The accused asked how long it would be before he was out and Chambers said a couple of hours. The accused declined a lawyer. Chambers said he had asked the accused about counsel again out of “common courtesy”. All the officer wrote in his notes was “he more concerned re how long he be there for”. He did not note that he had asked the accused if he wished to call a lawyer.

[58] At the station Chambers met P.C. Boccinfuso, the breath technician, and told him his grounds for arrest.

[59] Chambers said that while at the station the accused became irritated. The officer didn’t think the accused understood the seriousness of the offence because the accused declined counsel.

[60] Chambers told him that there had been a motor vehicle accident and that two people were sent to the hospital.

[61] At some point at the station, after asking again if he wanted counsel, Chambers telephoned the hospital and was advised that the injuries were not life threatening.

[62] Chambers has been an officer for 3 years.

[63] He was familiar with the intersection. He said the grade was flat and there was nothing to obstruct the view of a driver approaching it.

[64] After he turned the accused over to the breath technician he had no further involvement with the accused.

[65] P.C. Boccinfuso was dispatched to the station to do the breath test.

[66] He met Chambers who gave him information including his grounds for arrest and the time he had given the accused his rights to counsel. He testified that Chambers told him that the charge was impaired causing bodily harm.

[67] Boccinfuso wrote down the grounds received from Chambers: “mvc his fault, alcoholic beverage from driver’s mouth, slurred speech, delayed motor skills, unsteady on feet”. Chambers told him he had given the accused his rights to counsel and that the accused had not spoken to counsel.

[68] Boccinfuso was in full uniform and met with the accused alone.

[69] He read him a caution and asked if he understood. The accused said “yup”. He told the accused that if he had spoken to any other officer he wanted it clearly understood that it was not to influence him. The accused replied, “Yup”.

[70] The communications between Boccinfuso and the accused were videotaped except for a period in the middle when the accused left to go to the washroom.

[71] The accused made no complaint of his injury.

[72] Boccinfuso read the accused the cautions and all the questions on the “Impaired Driving Investigation Interview” form and noted his answers. In answer to the question, “Are you suffering from any illness or injury?” the accused said, “No”.

[73] There was a long period while they waited for the machine to warm up. They discussed hockey.

[74] On the back of the Interview form Boccinfuso circled a number of descriptions of the accused including:

- (a) Breath (Odour of an alcoholic beverage) – strong.
- (b) Colour of face – flushed.
- (c) Eyes – watery, glassy.
- (d) Speech – slurred, rambling.

[75] Two tests were administered.

[76] I watched the video which showed the accused behaving generally normally and appearing alert. At the end of the discussion the accused asked Boccinfuso questions about what he should do next and if he should get representation. He asked about X-Coppers and legal aid.

[77] Boccinfuso formed the opinion that the accused's ability to drive was impaired by alcohol.

[78] He said there were only two video cameras in the station: one in the breath room and one in the criminal investigation detective office.

[79] Mr. Bennett filed an affidavit and testified.

[80] In his affidavit he swears, *inter alia*, that:

- (a) he believes his head hit the windshield and that the force of the impact initially knocked him out.
- (b) His first clear memory following the accident is being escorted into the police station.
- (c) He has no memory of being treated at the scene, being arrested or being advised of his right to counsel at the roadside.
- (d) "Based on what I know now, however, that I was actually being investigated for charges of impaired causing bodily harm, I most certainly would have asserted my right to counsel and insisted upon access to immediate legal advice if I had truly understood my legal situation at the time."
- (e) "Looking back however I am not surprised that I cooperated with the police since I understand that anybody who has been involved in an accident is legally required to remain at the scene and provide a report to the authorities."

[81] In his testimony before me he generally said the last thing he remembers before the accident was slamming his brakes on, he did not remember anything at the scene, remembers traveling in the cruiser but does not remember any conversations with Chambers at the scene or at the station.

[82] He said when he got home he changed the bandage on his head but sought no treatment. In his affidavit he describes the injury as a deep gash.

[83] He was charged once before with impaired, was given his rights to counsel and declined. He knew he had a right to a lawyer.

[84] He said that even if it was not his legal obligation to provide his information to the police he would do so because that is the way he was brought up.

[85] He said he is not generally the kind of person who seeks medical attention.

ISSUES

[86] Before I begin my analysis I should mention that I had difficulty in this case keeping a list of all the points raised by both counsel because of the length of the submissions and the overlapping nature of the issues. However, I have re-read all the evidence and my notes of the evidence and the submissions. I cannot address all the arguments but I believe my reasons address all the significant issues. If either counsel believes I have not addressed an issue I ask that they give me and opposing counsel notice now and I will deal with it before the opening of the trial.

[87] The defence did not object to the admissibility of the officer's enquiry at the scene as to whether the accused was OK or to his answer that he was. The defence does oppose the admissibility of all other actions and statements of the accused and the test results.

Were the statements of the accused to both officers voluntary?

[88] The defence contends that the statements of the accused at the scene and at the station should be excluded because the Crown has not established beyond a reasonable doubt that they were voluntary. The only issue in this regard is whether the accused had an operating mind.

[89] I find that the Crown has established beyond a reasonable doubt that the accused had an operating mind at the time.

[90] The test for an operating mind is discussed in *R. v. Whittle* [1994] 2 S.C.R. 914. It includes the requirement that the accused be able to understand what he is saying and what is being said and that he can understand a caution and has the capacity to make a choice.

[91] I find on the evidence that the accused was initially dazed at the scene but by the time he got out of his car he was becoming fully alert. It was some time before P.C. Chambers arrived and there is no evidence that his injury was affecting his mobility or mental functioning at that time. I note his behaviour was normal according to Chambers and Boccinfuso except for the signs of impairment by alcohol. I note also that the lay witnesses, the fire and ambulance personnel spoke to the accused and saw fit to leave him alone.

[92] The accused says he believes he was knocked out. There is no evidence or expert opinion to support that belief. He can't remember anything after slamming on his brakes. His professed lack of memory does not tend to prove he was knocked out or suffered a concussion. In the absence of medical evidence his lack of memory is equally consistent with the effects of alcohol, stress or lack of veracity. In the latter regard I note that despite his claim of lack of memory he made several remarks during his testimony suggesting he did have at least some memory ("I thought I hit a truck"; "I said I just hit the back of a car"; "I smashed my head up ...I did not know where I was").

[93] The witnesses at the scene recall him responding quickly to their questions. His answers indicating he did not want to involve the authorities, like his answer to Boccinfuso about not

being injured, lose their apparent abnormality when one considers his testimony that despite having received a serious injury to his head, involving a deep gash and a perceived loss of memory, he sought no medical attention. He testified that not seeking medical attention was a normal reaction for him. He did tell P.C. Boccinfuso that he had diabetes which shows awareness of the issue. I infer all his answers about his health indicate he did not think his head injury was serious. His failure to seek medical attention tends to confirm that conclusion.

[94] At the scene the accused walked unassisted from his car to the curbside and from there to the cruiser which he entered and exited twice. He produced the documents requested by the officer. The observations of his condition by Chambers are remarkably similar to those noted in the documents by Boccinfuso at the station where his appearance, speech and behaviour are recorded on the video which I find shows an operating mind.

[95] I note that the fact that the ambulance personnel bandaged the accused's head and then left the scene tends to prove that they did not consider his injury serious.

[96] In my view there is no evidence that the accused was deprived, by police action or his condition, of the opportunity of making a choice as to whether to speak.

[97] I find that the Crown has proved beyond a reasonable doubt that the statements were voluntary.

Was the arrest a breach of s. 8 of the *Charter* because P.C. Chambers lacked reasonable and probable grounds to believe that the accused's ability to drive was impaired by alcohol?

[98] Because this requirement is required by both s. 254(3) of the *Code* and s. 8 of the *Charter*, the Crown must prove the grounds in order to make the breath samples admissible: *R. v. Haas* (July 27, 2005, Ont.C.A.).

[99] I conclude that P.C. Chambers had reasonable and probable grounds.

[100] I accept his testimony that he believed he had reasonable grounds.

[101] The real contest here was whether there was objective evidence to support such a belief.

[102] The defence relied heavily on the officer's testimony that he only believed he had the grounds when he smelled the strong odour of alcohol in the cruiser. In my view the officer's explanation of the grounds is not what is at issue here. If he had an honest belief and there were objective grounds known to him which would justify that belief then it does not matter if the officer errs in explaining those objective grounds later. I note that the grounds he gave Boccinfuso were more detailed than his testimony on the *voir dire*.

[103] The evidence known to the officer included the following:

- (a) The road was clear and dry.
- (b) The grade was flat.
- (c) The accused collided with the rear of a car at an intersection governed by 4 stop signs.
- (d) There was no obstruction to a driver's view as he approaches this intersection.
- (e) The speed limit is 50 kph.
- (f) There were long skid marks leading to the point of collision.
- (g) Mr. Kean said the accused was the driver and had braked at the last minute.
- (h) The accused driver had a strong smell of alcohol coming from his mouth.
- (i) The accused was slightly slurring his speech.
- (j) The accused was slightly unbalanced on his feet.
- (k) The accused had a head injury but had declined to go to the hospital and was walking around unassisted.
- (l) The accused did not complain of injury or ask for medical attention.
- (m) The accused said he was "OK".
- (n) The accused responded appropriately to the officer's questions.

[104] In my opinion the totality of this information objectively supports the officer's belief that the accused's motor skills were delayed and his reaction time was delayed by alcohol. That belief satisfies the requirement that he have reasonable grounds to believe that the accused's ability to operate a motor vehicle was impaired even to a slight degree: *R. v. Stellato* (1994), 90 C.C.C. (3d) 160 (S.C.C.).

[105] One of the thrusts of the defence was that because of the head injury the other factors could not support a reasonable belief that it was alcohol which was impairing the accused. I disagree.

[106] First, the fact that there is another possibility for the impairment does not exclude an honest and reasonable belief that alcohol is the cause. Second, the evidence known to the officer tends to show that the head injury was not the cause. The accused's behaviour known to the officer at the scene did not suggest an impairing head injury and the probative facts of the collision preceded that injury.

[107] The defence contended that the officer should have made further investigation and conducted a roadside screening test. In my view this is not the issue: *R. v. Censoni* [2001] O.J. No. 5189 at para. 46 ff. The issue is whether the information which was known to the officer caused him to form an honest belief and whether that evidence objectively justified that belief.

Was there a breach of s. 10 of the Charter? Was there a waiver of the right to counsel?

[108] P.C. Chambers testified that he read the rights to counsel at the scene. This is not seriously contested and I find that he did. He also said he enquired casually again at the station whether the accused wanted to speak to a lawyer. There is some doubt about this as there is nothing in his notebook about this but it is not necessary that this second offering be made.

[109] The Crown must meet the high standard of proving on the balance of probabilities that the accused clearly and unequivocally waived his right to counsel with the full knowledge of the rights the procedure was enacted to protect. This applies to both 10(a) and (b): *R. v. Bartle* (1994), 92 C.C.C. (3d) 289 at 3-9-311.

[110] The defence raised a number of arguments.

[111] The defence contends that the Crown cannot establish waiver where the officer has not made a note of the specific words used by the accused to waive the right to counsel.

[112] The case of *R. v. Simanovsky* [2003] O.J. No. 4461 was relied on. I do not think that case stands for the proposition that the failure to record an accused's verbatim response to a reading of the rights to counsel is fatal to the Crown's obligation to prove waiver. I shall not summarize all the facts of that case but they are significantly different from those before me.

[113] It obviously would have been preferable for P.C. Chambers to have recorded the verbatim response to the officer's reading of rights. However, on the evidence I conclude that the accused did waive his right to counsel. The officer did make a note of his having read the rights and of the fact of the accused's saying he understood and waived a lawyer. The evidence satisfies me that the accused spoke in a clear and comprehensible manner except for slight slurring. The answers recalled by the officer were very similar to those the accused gave to P.C. Boccinfuso who recorded the answers ("Yup" and "Yep"). While the officer's account of the waiver is a description or conclusion rather than an objective description of words which the court can independently interpret, I find it very unlikely that P.C. Chambers would misunderstand the meaning of the response. There is no contest of versions in this case as the accused has no memory of the event.

[114] The defence also relied on *R. v. Zack* [1999] O.J. No. 5747 for the proposition that if what is at issue is not in the officer's notes then the court should infer that it did not occur. I do not accept that proposition and don't think *Zack* says that. Also, the case before me is not a case where the officer wrote nothing indicating that an event occurred. He noted that he had read the rights to counsel and that the accused understood and declined. What was missing was a note of the exact words spoken. I accept the officer's evidence that these events occurred.

[115] The remaining issue then is whether the officer misconstrued what the accused said. I find on all the evidence that he did not. None of the witnesses who spoke to the accused said they had difficulty understanding him. His answers to Boccinfuso were very similar to those recalled by Chambers.

[116] The defence also asks that I draw an adverse inference and find that the accused did not waive his rights to counsel because P.C. Chambers did not video his alleged waiver at the police station when there were two video cameras in that facility. I decline to do so.

[117] The case relied on by the defence was *R. v. Delmorone* [2002] O.J. No. 3988. In that case there was conflicting evidence. In our case there is none: the accused says he has no

memory. That case cites others which stand for the proposition that where the police do not record a statement when they can easily do so then the court may conclude that they did not do so because they did not wish to create a reliable and independent account. There is no evidence here to support a finding that P.C. Chambers failed to record the waiver for this reason.

[118] The defence contends that the Crown has not established that the accused gave up his right with a full awareness of the consequences. There are three aspects to this.

[119] The defence contends that in the circumstances of the head injury the police were required to make further efforts to verify his comprehension. In my view there is no such free-standing requirement. The issue is whether on the evidence adduced the court is satisfied that there was a legal waiver.

[120] The defence further contends that the evidence concerning the accused's head injury should leave me unpersuaded that the accused understood the reading of the right or the consequences of a waiver. It does not. I have already discussed why I find that the accused's head injury was not impairing his mind when he was in the presence of P.C. Chambers and later in the presence of P.C. Boccinfuso. I conclude that the requirements of the operating mind required by *R. v. Whittle*, op. cit., in a waiver of counsel situation have been established by the Crown. I note in passing that the accused testified that he understood the right to counsel and had in the past waived counsel albeit on a lesser charge. In my view what the accused lacked here was analytical ability which is not a requirement: *Whittle* at para.51.

[121] The defence also contends that there was no waiver here because the accused was not informed of the full extent of his jeopardy because P.C. Chambers did not tell him he was going to be charged with impaired causing bodily harm.

[122] This is a troublesome issue. The evidence is uncontradicted that P.C. Chambers told the accused at the scene that he was arrested for impaired driving and never told him that any other charge would be laid. P.C. Chambers told P.C. Boccinfuso privately that the charge would be impaired causing bodily harm. P.C. Boccinfuso then formally told the accused before the breathalyzer test and interview that this would be the charge but did not read the rights to counsel again because he believed this had been done by P.C. Chambers and believed that P.C. Chambers had before that reading informed the accused of the more serious charge.

[123] I accept the defence position that impaired causing bodily harm entails significantly greater jeopardy than impaired: *R. v. Benson* [1996] N.J. No. 285.

[124] The requirement that the Crown prove that the accused waived his right to counsel with knowledge of the extent of his jeopardy is explained in *R. v. Smith* (1991), 63 C.C.C. (3d) 313 (S.C.C.). The court there ruled that it is not fatal that the police do not inform the accused of the precise charge. What the Crown must show is that the accused "understand generally the jeopardy" and that in determining this the court can take into account "the degree of awareness which the accused may be reasonably assumed to possess in all the circumstances". I take this to mean the court may consider what it finds the accused did know.

[125] I have concluded that, despite the failure of P.C. Chambers to inform the accused that the charge would be impaired causing bodily harm, the Crown has established that the accused did understand generally the jeopardy he faced on that eventual charge.

[126] The fact that the accused says he has no memory of the events at the scene does not mean he was not aware of them at the time of the waiver to P.C. Chambers. The evidence of those who spoke to the accused at the scene convinces me that the accused then was able to understand and respond appropriately.

[127] After the accused got out of his car and got over his initial “daze” he would necessarily have been aware of these facts before P.C. Chambers read him his rights to counsel:

- (a) There was significant damage to both vehicles.
- (b) The windshield on his vehicle was broken.
- (c) The other vehicle had been pushed some distance ahead.
- (d) He was significantly injured.
- (e) People at the scene wanted to call 911.
- (f) There were fire and ambulance vehicles at the scene.
- (g) He was the driver of the vehicle which rear-ended the other.
- (h) He had been drinking.
- (i) He was to be charged with impaired driving.

[128] The accused acknowledged in cross-examination that if he knew that there were fire and ambulance vehicles and police arriving this would convey to him that it was a fairly serious situation.

[129] I find I cannot accept the accused’s statement in his affidavit that if he had known he was being investigated for impaired bodily harm he would have asserted his right to counsel. When P.C. Boccinfuso specifically told him this he expressed and showed no surprise or wish to consult counsel. I am satisfied he had an operating mind at that time also.

[130] I find on the evidence that the reason P.C. Chambers got the impression that the accused did not understand the seriousness of the charge and the reason that the accused only began discussing legal representation at the end of the discussion with P.C. Boccinfuso is that he lacked sophistication and “analytical ability”. In my view the latter had nothing to do with his head injury.

[131] I conclude he generally understood the jeopardy he faced from the time P.C. Chambers first spoke to him.

[132] I find that the evidence also establishes that the accused would not have asked for counsel even if P.C. Chambers had informed him that he would be charging him with impaired bodily harm.

[133] With respect to s. 10(a) there is no real contest that he was informed initially by P.C. Chambers that he would be charged with impaired driving and later by P.C. Boccinfuso that he would be charged with impaired causing bodily harm. On all the evidence there is no suggestion that P.C. Chambers knew before he arrived at the station that he was going to charge him with the more serious charge.

[134] I conclude there was no breach of s. 10(a) or (b) and that the accused waived his rights to counsel.

Are the accused's statements inadmissible because he made them under the honest and reasonable belief that he was compelled to do so by statute?

[135] The defence bears the burden of establishing on the balance of probabilities that his s. 7 rights were breached by showing that at the time the accused made the statements to both officers he spoke because of an honest and reasonably held belief that he was required by law to report the accident to them: *R. v. White* (1999), 135 C.C.C. (3d) 257 (S.C.C.) at para. 75.

[136] Having reconsidered all the evidence, I conclude that the defence has not satisfied this burden.

[137] I do not find the affidavit of Mr. Bennett persuasive. I note that the language used in para. 7 is much too sophisticated to have come from the accused based on the information I have about his speech from viewing the video and his *viva voce* testimony. I also note that he expresses in that paragraph his retrospective views "based upon what I now know" and obviously after consulting with counsel. I also note that the affidavit does not distinguish his belief on this issue at the time as opposed to now ("I understand that...").

[138] In his interview with P.C. Boccinfuso he showed his willingness to talk about a range of subjects with the officer. It was clear he was not talking about hockey because he felt an obligation to report an accident.

[139] In his *viva voce* testimony he said he would, as a matter of instinct, talk to the police even when he knew he did not have to because he was brought up that way.

[140] Further, the statement to P.C. Chambers that he was "OK" is not about the accident.

[141] Finally, there is no direct evidence as to why he made the statements to P.C. Chambers because he has no memory of making them.

CONCLUSION

[142] For these reasons I dismiss all the defence applications.

[143] I also find that the statements of the accused were voluntary and are therefore
admissible.

Released: 2005-08-25

COURT FILE NO.: 10408/04
DATE: 2005-08-25

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

HER MAJESTY THE QUEEN

- and -

BARRY BENNETT

**REASONS FOR JUDGMENT ON DEFENCE
PRE-TRIAL APPLICATIONS**

D.S. Ferguson J.

Released: 2005-08-25